THE STATE

Versus

DUMISANI MOYO

HIGH COURT OF ZIMBAB WE
MUTEVEDZI & NDUNA JJ
BULAWAYO, 23 March 2026

Criminal review judgment

MUTEVEDZI J: The prohibition form driving, of a person convicted of an offence in terms of the Road Traffic Act [*Chapter 13:*11] ["the RTA] or of any other offence such as murder or culpable homicide and sentenced in terms of s 64 (3) of the same Act is not solely dependent on whether or not that person holds a valid driver's licence because prohibition form driving is different from cancellation of an existing driver's licence. It stems from a court's conclusion that the person concerned is incompetent for one reason or another, to drive a motor vehicle. In fact, I note that, it is possible that the finding of incompetence to drive, and the attendant prohibition is divorced from the commission of an offence because it may be imposed even in circumstances where the prohibited person has been acquitted by a court as provided for under s 63 (1) of the RTA. In this case, the trial magistrate was swayed from prohibiting the offender from driving because he (offender) was not a holder of a valid driver's licence.

[1] The record of proceedings was placed before me for automatic review in terms of section 57 of the Magistrate Court Act ("the MCA"). The offender, Dumisani Moyo, appeared before the court of a provincial magistrate at Bulawayo. He was charged with the crimes of 'Driving Without a Valid Driver's Licence' and 'Culpable Homicide' as defined in s 6(1)(a) of the Road Traffic Act [*Chapter 13:*11] ["the RTA] and s49 of the Criminal Law (Codification and Reform) [*Chapter 9:23*] ["the CODE"] respectively.

[2] The brief allegations in respect of count one, were that on 19 February 2023 and along Robert Mugabe Way between 6th Avenue and L. Takawira Street, Bulawayo, the offender drove a VW Passat registration number AEH4457 without a valid driver's licence. In respect of count two, whilst driving the said vehicle, the offender hit a pedestrian, Zenzile Mpofu. She was badly

injured and ferried to United Bulawayo Hospitals where she later died from the wounds. The State alleged that the offender was negligent, in that he failed to keep a proper lookout in the circumstances, failed to stop or react reasonably when an accident or collision seemed imminent and was speeding in the prevailing circumstances.

[3] The trial court convicted the offender of both counts on his own plea of guilty. It sentenced him as follows: -

> "Count 1: US$200.00 or ZIG equivalent in default of payment 4 months imprisonment
> Count 2 : 24 months imprisonment."

[4] The conviction cannot be debated. l therefore confirm it, as being in accordance with real and substantial justice. The sentence however appears to me to be afflicted by a fundamental irregularity. I raised a query regarding the appropriateness of the sentence in the second count particularly why the trial magistrate did not find it necessary to prohibit the offender from driving as required by the law.

[5] In his response, the trial magistrate conceded the omission. He stated that: -

> "I concede that I should have prohibited the offender from driving. This oversight will not be repeated in the future. May l be guided on the corrective measures. "

[6] In terms of section 64(3) of the RTA, a person convicted of culpable homicide cannot escape prohibition from driving. That provision obliges a court convicting an offender of murder, attempted murder, culpable homicide, assault or any similar offence or any offence involving the driving of a motor vehicle, where the court is satisfied that the convicted person would have been convicted of an offence in terms of this act, to prohibit such person from driving. Its meaning was clearly explained by DUBE J (now JP) in *S* v *Ngwenya* HH181-15 where she held that: -

> "The import of this section is that it permits a court which has convicted a person of a driving offence, whether in terms of the Criminal Code or any other law, to order prohibition from driving a specified class of vehicles for a specified period. It is immaterial that the penalty section 49 does not provide for a prohibition as a sanction. The intention of the legislature is clear, from section 64 of the Road Traffic Act, that its intention was that prohibition from driving be considered in any case involving a driving offence."

[7] The same position had been taken in the earlier case of *S* v *Chaita* 1998 (1) ZLR 213 (H) where the offender had been convicted of culpable homicide and sentenced to a fine. Reviewing the proceedings, CHINHENGO J held the following regarding the prohibition of an offender from driving upon conviction: -

> "To sum up, therefore, on a charge of culpable homicide arising out of a motor vehicle accident the court is required to make a finding on the degree of negligence of the accused and is enjoined to approach the matter in terms of section 64(3) of the Act. A failure to do so is clearly a misdirection."

[8] In *S* v *Sithole* HB21-13 CHEDA J observed that: -

> "The trial magistrate did not investigate or address his mind with regards to prohibition from driving which is a requirement for such type of offence. In that regard, it is clear that there was a misdirection on the part of the magistrate"

[9] In the instant case, the trial magistrate correctly assessed the offender's degree of negligence and found that the offender had been grossly negligent. That level of negligence is not specifically charged under the RTA. It is however at times equated to recklessness. The only difference is that gross negligence is an aggravated form of negligence whilst recklessness involves a conscious decision to take hazardous actions. In the latter category, the person is heedless of the danger that he or she poses to others. As such, a court which makes a finding that the degree of negligence of a person charged with culpable homicide was gross, is actually finding, although in not so many words, that the person's negligence approximated recklessness. If the person had been convicted under the RTA, they would have been convicted of the crime of 'Reckless Driving' in contravention of s 53 thereof. Section 53(4) of the RTA provides for the prohibition from driving upon conviction and reads as follows: -

> "Subject to Part IX, a court which convicts a person of an offence in terms of subsection (1) involving the driving of a motor vehicle **shall**-
>
> (a) If the person has not previously been convicted of a similar offence within a period of ten years immediately preceding the date of such first mentioned conviction-
>
> (i) in the case of a first-mentioned conviction which does not relate to the driving of a commuter omnibus or a heavy vehicle, **prohibit the person from driving for a period of not less than six months**; or…
>
> Provided that such court may decline to prohibit the person from driving if it-
>
> (a) considers that there are special circumstances in the case which justify the court in so declining; and
>
> (b) endorses the special circumstances referred to in paragraph *(a)* on the record of the case when passing sentence." (bold emphasis is mine)

[10] Clearly, once a court determines, like it did in this case, that the degree of negligence was gross and the person was liable to be sentenced in terms of s 53 of the RTA, it was bound to consider banning the offender from driving for the specified period. The only way it could have avoided the driving ban was if it had found the existence of special circumstances. In *casu,* I note that the trial court did not even begin to explain the concept of special circumstances to the offender. It did not occur to it that it was necessary to do so. In the process, it committed a gross irregularity which unfortunately goes to the root of the sentencing regime

in in crimes governed by s 64 (3) of the RTA. For that and the other reasons already stated, the sentence imposed becomes irregular. It cannot stand. I therefore direct as follows: -

a. The sentence passed by the court *a quo* in respect of count two be and is hereby set aside.
b. The matter is remitted to the court aquo for the trial magistrate to enquire into the existence or otherwise of special circumstances
c. thereafter, it shall proceed to sentence the offender in compliance with the guidelines given in this judgment
d. In the new sentence, whatever time the offender may have spent in prison shall be taken into account as time already served.

MUTEVEDZI J…….

NDUNA J…… I agree